The American Dream and the Waukesha Christmas Parade Attack:

A Review of the State of Wisconsin V. Darrell Brooks

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To be or not to be guilty? That's the big question—or at least, that's the verdict. Criminal justice can sometimes seem unpredictable, shaped by the strength or weakness of the institutions running it as much as by the evidence itself. This case shows why legal representation matters in the first place. Darrel Brooks fired his own attorneys and chose to represent himself, a decision that reflects something way past leveraging his own legal strategy. I want to understand the social and criminological factors that drive someone to commit such shocking acts against strangers in their own community, and why the systems meant to stop him before- bail, the courts, his own defense- failed to do so. Although the court has made its decision, I continue to investigate this case to understand the chaos, even if the answers are not as straightforward as I would like. Even mainstream media seems to be wrestling with this same tension right now; Kendrick Lamar's 2025 Super Bowl halftime show was built almost entirely around the idea of the "American Dream". Framing it as a game with rules that were never set on an equal stage (Hollywood Reporter, 2025). Even if it's just conjecture between a promise of opportunity and the reality of who actually gets access to it. This paper will get to the crux of the matter.

Background of the Case

On November 21, 2021, a Christmas parade was held to celebrate a long-standing tradition. The previous year's parade was canceled because of COVID-19 and the risk of public gatherings. Many people attended the 2021 parade, excited for it to be back. At about 4:40 p.m., a red Ford Escape SUV, going around 40 mph, crashed through barriers meant to keep vehicles off the parade route. The SUV zigzagged through the crowd, hitting people while spectators

watched from both sides. The driver, Brooks, appeared calm and intentionally swerved to hit as many people as possible (Murphy, 2021).

Police tried to stop him by hitting the car's hood and later shooting at it, but they were not successful. Brooks was eventually caught and identified as Darrell Brooks, a 39-year-old man. At that time, he had dreadlocks that reached from the middle of his head down his back, with no hair on the front part of his head. He later cut off all his dreadlocks to appear like a "sovereign citizen," as he claimed during the trial (Press, 2022).

After fleeing the scene, Brooks parked his SUV in a semi-secluded alley and entered a residential area. He approached a house, knocked on the door, and pretended to be a homeless man waiting for an Uber. He seemed frantic, prompting the homeowner to tell him to wait outside while he got a sandwich and a jacket for Brooks. This interaction was caught on a security camera. When the police arrived, Brooks was on the porch of the residence and surrendered without resistance (Murphy, 2021).

Investigation and Prior History

The Waukesha Police Department led the investigation against Darrell Brooks, working with the Waukesha County Sheriff's Office and the Wisconsin State Patrol. They examined the SUV, revealing damage consistent with Brooks' zigzagging motion aimed at hitting pedestrians, and witness testimony illustrated his deliberate, ruthless behavior during the parade, supporting the prosecution's case (Murphy, 2021).

The prosecution presented expert testimony from forensic psychologists who evaluated Brooks's mental state and his ability to stand trial. Brooks had been diagnosed with bipolar disorder at age 12, but the defense's attempt to claim insanity failed. More significant for

understanding this case, however, was what the investigation revealed about Brooks' background. He had a criminal history with prior charges for violence, domestic abuse, and statutory rape of a minor, which the prosecution used to establish a pattern of reckless and violent conduct. It was also revealed that Brooks had fled from a domestic situation just before the parade incident, indicating a possible motive for his actions (Oh, 2021).

During the trial, Brooks chose to represent himself, hindering his defense. Despite the judge's warnings about the difficulties of self-representation, Brooks acted as his own attorney and appeared disoriented, disorganized, and unfocused, struggling with cross-examinations and failing to challenge the prosecution's evidence effectively. He frequently interrupted the judge, argued over legal details, and had disruptive outbursts that reflected poorly on him. His inability to behave properly in court led to his removal from the courtroom to prevent further disruptions; once relocated to an adjacent room, Brooks pretended the microphone didn't work and claimed he couldn't hear the judge (Press, 2022).

Court Proceedings Initially, Brooks was represented by court-appointed defense attorneys who began to prepare a defense and explore an insanity plea. However, Brooks chose to represent himself and fired his lawyer, leading to a chaotic and lengthy trial that began in October 2022 and lasted several weeks, drawing significant media attention due to the case's severity.

Brooks struggled with legal procedures and frequently declared himself a sovereign citizen, challenging the court's jurisdiction. This disrupted the trial and tested the patience of the court and jury. His claims aligned with the sovereign citizen movement, which denies the validity of certain national legal standards. Brooks questioned the judge's authority and the

court's jurisdiction over him, claiming they did not apply to him. His outbursts and erratic behavior showed his instability. The jury deliberated for just hours before returning a guilty verdict on all 76 counts (Press, 2022).

Sentencing Darrell Brooks was charged on November 23, 2021, two days after the Waukesha parade incident. He faced six counts of first-degree intentional homicide among 76 charges.

On November 16, 2022, Brooks was sentenced to six consecutive life sentences without parole for first-degree intentional homicide. One for each of the six victims who died in the parade attack. Additionally, Brooks received over 700 years in prison for other charges, including 61 counts of first-degree recklessly endangering safety, six counts of a hit-and-run resulting in death, two counts of bail jumping, and one count of battery. The judge emphasized the heinous nature of Brooks's actions and his lack of remorse during the trial, noting his disregard for human life (“Darrell Brooks Sentenced”, 2022).

Turning to Theory Having established what happened and how the legal system responded in this case, the remainder of this paper will detail a different question: why. Rather than treating Brooks’s actions as an isolated act of individual evil, I want to use criminological theory to understand his behavior and the institutional failures that were supposed to prevent it, from the bail system that released him weeks before the parade to his own decision to reject legal representation and challenge the court’s authority and jurisdiction. As a Black man moving through institutions that Messner and Rosenfeld (2013) and Anderson (2001) both describe as having failed black communities long before Brooks himself was born, his case cannot fully be understood apart from that history. Three theoretical perspectives and writings will be useful in

this section. Hirschi's (1993) social control theory helps explain why Brooks rejected the court's legitimacy or, as he calls it, "jurisdiction" and why the theory of this is more profound than just a legal strategy. Messner and Rosenfeld's (2013) theory of institutional imbalance and the American Dream helps explain how a weak bail system and a justice system distorted by economic priorities failed to restrain Brooks despite his known history of violence. Finally, Anderson's (2001) concept of the code of the street helps situate both of these situations within a pattern of distrust between Black communities and the institutions meant to protect them.

Hirschi's Social Control Theory Travis Hirschi's (1993) social control theory asks a different question than most criminological theories. Rather than asking why people commit crime, Hirschi asks why most people do not, even when they have the opportunity and could likely get away with it. He answers that people are held back from crime by how connected they are to everyday, conventional life - their job, their family, their community, and the basic rules everyone else follows. Hirschi identifies four elements that make up this connection: attachment, meaning emotional closeness to others whose opinions we value: commitment, meaning the investment a person has in avenues like education or careers, which they risk losing if caught; involvement, meaning simply being busy with work, school etc that leave less time and opportunity for crime; and belief, meaning a person's acceptance that the laws and rules of society are legit and deserve to be followed, the exact opposite of Brook's sovereign citizen acclamation, if anyone was wondering.

According to Hirschi, when these connections are strong, a person has too much to lose by breaking the law. But when they are weak, particularly the belief bond, a person feels little obligation to follow rules they do not see as legitimate in the first place. Weak belief does not

necessarily mean a person actively supports crime; it can simply mean they no longer feel bound by the moral authority of the institutions asking them to comply.

Messner and Rosenfeld's Institutional Balance of Power Steven Messner and Richard Rosenfeld (2013) take a step back from analyzing individual behavior and instead take the time to look at crime from a societal level. Their argument builds on that of the sociologist Emile Durkheim's concept of anomie, a period of major social or economic change that leaves people without a clear sense of right or wrong. Messner and Rosenfeld argue that American culture produces a version of this "condition" constantly, not just in times of duress, through what they call the "American Dream": a relentless, universally national demand for material success, sold to everyone as equally attainable, under conditions of open competition that were never actually equal to begin with. The problem is not that people want to succeed. The problem is that this culture drills the goal into everyone far harder than it ever insists on the means to get there, and then blames the individual when the gap between the two cannot be withstood.

Messner and Rosenfeld push this critique into the structure of American institutions themselves. The economy, they argue, has been allowed to dominate everything else. Family, education, and government included, until those institutions are hollowed out and forced to serve the economy instead of the people they were built to protect. When that happens, the systems meant to hold people accountable- courts, bail, oversight- are not just underfunded or defunded. They are set up to fail the people who need them while still functioning well enough to protect the interests of capital and property, economics in a nutshell.

This argument also surfaced on one of the largest stages in the country when Kendrick Lamar performed the Super Bowl LIX halftime show in February 2025; it was a performance

built around the American Dream, with its art director describing it as Kendrick's own journey "traveling through the American Dream" (Hollywood Reporter, 2025). The show ended with the words "game over", a blunt admission that for a lot of people, especially African Americans, the game was rigged before they ever got a turn. That is precisely the gap Messner and Rosenfeld (2013) are pointing out: a culture that demands everyone chase the same lofty dream, resting in the hands of institutions that were never built to let everyone win.

Anderson's Code of the Street Elijah Anderson (2001) grounds his theory in the same reality that Messner and Rosenfeld describe in abstract, but Anderson builds his theory with face-to-face observations, watching everything unfold in poor inner-city Black communities. It is called street code, or as Anderson puts it, "code of the street": an unwritten but widely enforced set of rules governing how a person carries themselves in public, how disrespect is remedied, and in what instances violence is required.

Anderson traces the code directly back to material conditions, such as no jobs that pay a living wage, ingrained racism, and communities flooded with drug abuse, alongside distrust of the police and court systems. When the people meant to protect a community either cannot, will not, or endanger them more with their intervention than without, people in the community are left to handle it on their own. Respect or "juice," as it is called in the streets, is treated as scarce and something that has to be defended because so little else in a person's life feels within their control. Families and individuals move between what he calls "decent" and "street" orientations depending on circumstance, and the majority of families in these communities are trying, often against brutal odds, to raise their children in a decent way. But even decent families cannot opt

their children out of the code fully, because the code governs the system that was put into place, not just the people.

At the center of it all is the demand for respect, i.e earning your manhood means being recognized by everyone around you, strangers included, as someone with the right to be unbothered and someone who will defend that right by any means necessary. Anderson argues that a willingness to risk death for disrespect is not irrational in this code. The code was made in place of formal institutions that never showed up when justice was needed.

Applying the Theory Long before Brooks ever got behind the wheel that day, his life showed us a pattern consistent with what Hirschi (1993) calls a broken bond. He had a documented history of violence, domestic abuse, and statutory rape of a minor who later appears on the witness stand as his girlfriend, and had fled a domestic situation just before the parade attack (Oh, 2021). Hirschi argues that people are held back from crime in part because of attachment to others who matter to them and a genuine belief that the rules requiring compliance are legitimate. Brooks's violence toward people closest to him suggests that whatever attachment or belief should have restrained him had already broken down well before November 21, 2021.

We can see something similar resurface once Brooks was in custody. When we read through Hirsch's (1993) social control theory, we can see that Brooks no longer accepted that the court had any legitimate authority over him. He repeatedly declared himself a sovereign citizen and denied that the court's jurisdiction applied to him at all (Press, 2022). Hirschi argues that people are held back from crime in part because they accept that institutions asking them to comply are legitimate. What remains unclear is whether Brook's held this same sovereign citizen sentiment before the parade attack, or whether it emerged only once he was already facing the

consequences of what he had done; either possibility is worth exploring further, since it changes whether this ideology is a cause of his disregard for the law, a reaction to being caught, or a rooted belief system he grew to adopt over time.

Anderson's (2001) literary work offers a way for us to think about where a belief system like this could have taken root in the first place. Anderson argues that in communities where police and courts fail to protect people, street rules take over, one built on distrust of institutions and the need to handle protection and justice on one's own terms. This does not mean Brooks grew up in the exact Philadelphia inner-city poor Black neighborhood as Anderson describes and observes, but the underlying idea here is worth considering. Black communities are often simultaneously the most heavily policed and the least protected, over-surveilled but under-served where they really need it, and that contradiction is exactly what Anderson's Code of the Street emerged to mitigate. If Brooks experienced a life where institutions, whether the police, the courts, or the systems meant to intervene in his documented history of violence, repeatedly failed to hold him accountable or protect the people around him, then reacting to the legitimacy of the same institutions years later would allude to a gradual decision, not a sudden one. It would be consistent with a worldview shaped before he ever stood in front of a judge. For many Black Americans, that same distrust is not a rejection of the American Dream itself, but a response to watching that dream fail to apply equally, from the time it was first built on ideals of westward expansion and land ownership that excluded enslaved and formerly enslaved Black people entirely, to the present day, where the same institutions built during that era still fail to include Black communities equally.

Messner and Rosenfeld's (2013) theory of institutional imbalance helps explain a failure on the part of the institutions that happened well before Brooks ever got behind the wheel: the bail system itself. Just weeks before the parade attack, Brooks was released on bond after allegedly running over the mother of his child with the same vehicle he would later drive into the crowd (Murphy, 2021). A system with genuine "institutional strength" does not release someone accused of that kind of violence, especially not someone already carrying a documented history of domestic abuse, rape, and other violent charges, back onto the street with so little supervision. Messner and Rosenfeld argue that American institutions, courts and bail systems included, are shaped by an economy that controls everything else, which ends up leaving the systems put into place to protect people underfunded and deprioritized relative to the demands being asked of them. It is to be acknowledged and known that the six lives that were lost in the Waukesha Parade were not just the result of one man's choices. They are also the result of a bail system that had every piece of information it needed to see the danger Brooks posed, and let him go anyway.

Discussion and Conclusion

Darrel Brooks was found guilty on all 76 counts, and the court's decision was never really in question. What this paper has tried to show is that guilt alone does not explain how six people ended up dead at a Christmas parade in the first place.

If I am being honest, what is interesting is more than the fact that Brooks actually committed this crime; it is how predictable his path looks once you trace it back. A documented history of violence that never resulted in real accountability for his actions. A bail system that let him walk free weeks after allegedly running someone over with a car, an SUV at that. A courtroom where he could stand up and openly reject the legitimacy of the entire process, multiple times, and the trial simply continued around him, even prolonged for days. This was all

sitting there in the record, available to anyone who wanted to look into it, and the systems responsible for catching them did not. I do not think Brooks is an aberration; I think he is what happens when every single opportunity to intervene gets missed, one after another, until there is nothing left to stop him.

Still, I want to offer a counterargument to my own point here. Yes, it is hard to survive in the Black community, especially for someone whose parents raised them according to the code Anderson describes. But it is also on the individual to transcend into a decent person, because you can blame institutional failure all you want, and there is still a real sociological, interdisciplinary layer underneath all of it that says that you cannot fully factor the person out of the crime just to place the blame entirely on the institution.

None of this excuses what Brooks did. But treating this case as the story of one uniquely evil man lets the systems around him off the hook, and those systems had every opportunity to intervene long before the unfortunate incident unfolded. If crime in America is, as Messner and Rosenfeld argue, the product of a culture that demands success while starving the institutions meant to hold people accountable along the way, then it is exactly as the theory predicts.

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